

3.	26PR0252	IN THE MATTER OF HAROLD CARPENTER
PETITION HEARING / MOTION HEARING		

On August 26, 2026, Petitioner, El Dorado County Sheriff Jeff Leikauf (“Petitioner”), filed: 1) Petition for Orders and Temporary Order Authorizing Compliance with Inmate’s “Do Not Resuscitate” Directive Pursuant to Probate Code Sections 4766 and 4770; and 2) Motion to File Medical Records Under Seal; Declaration of Stephen L. Mansell.

Proofs of service attached to each motion indicate Richard Terry of the El Dorado County Public Defender’s Office was served on August 26, 2026. A Proof of Service was filed on August 27, 2026, indicating Harold Carpenter (“Patient”) was personally served on the same date.

DNR DIRECTIVE PETITION

Petitioner contends that Patient is an inmate in the custody of the El Dorado County Jail. On April 27, 2026, Patient executed a Physician Orders for Life Sustaining Treatment (POLST) form which contains a Do Not Resuscitate directive (“DNR Directive”). The DNR Directive was signed by Patient and Patient’s treating physician, Clay Josephy, M.D.

Petitioner asserts that Patient had the capacity to make health care decisions and understood the nature and consequences of the DNR Directive at the time of execution and continues to possess this capacity while affirming his desire the DNR Directive be honored. The Declaration of Christopher Smith M.D. confirms Patient’s medical condition, prognosis, and capacity to execute the POLST form, which contains the DNR Directive, as well as his continued capacity.

Petitioner asserts that given the institutional setting and the involvement of multiple health care providers, jail medical staff, custody staff, and emergency medical personnel, Petitioner seeks a court order to provide clear legal authority and protection for all staff members who may be called upon to honor Patient’s DNR Directive, including the jail’s contracted third-party medical staff. Without a court order, staff members may face uncertainty regarding their legal obligations and potential liability when implementing the DNR Directive in an emergency situation.

Petitioner seeks the following:

1. Find that Patient executed a valid do not resuscitate directive on April 27, 2026, in accordance with California Probate Code § 4780 and applicable regulations;
2. Find that the DNR Directive remains in effect and has not been revoked or modified;
3. Find that Patient possessed capacity at the time of execution and continues to possess capacity and to affirm his wishes as expressed in the DNR Directive;

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4. Authorize and direct all health care providers, jail medical staff including third-party contracted health care providers, custody personnel, emergency medical responders, and outside hospital staff to comply with and honor Patient's DNR Directive;
5. Order that Patient's DNR Directive be prominently noted in Patient's medical records and custody file;
6. Order that a copy of this Court's order and Patient's DNR Directive accompany Patient during any transport to outside medical facilities or hospitals;
7. Find that all health care providers and jail personnel who comply with Patient's DNR Directive in good faith are entitled to protections of California Probate Code §§ 4740 and 4782, and are not subject to civil or criminal liability, disciplinary action, or administrative sanction; and
8. Order that this order remain in effect unless and until Patient revokes the DNR Directive or this Court issues a subsequent order modifying or terminating this authorization.

Probate Code § 4770 provides that the court in its discretion, on a showing of good cause, may issue a temporary order prescribing the health care of the patient until the disposition of the petition filed under Section 4766.

Probate Code § 4766 instructs that a petition may be filed under this part for any one or more of the following purposes:

- (a) Determining whether or not the patient has capacity to make health care decisions.
- (b) Determining whether an advance health care directive is in effect or has terminated.
- (c) Determining whether the acts or proposed acts of an agent or surrogate are consistent with the patient's desires as expressed in an advance health care directive or otherwise made known to the court or, where the patient's desires are unknown or unclear, whether the acts or proposed acts of the agent or surrogate are in the patient's best interest.
- (d) Declaring that the authority of an agent or surrogate is terminated, upon a determination by the court that the agent or surrogate has made a health care decision for the patient that authorized anything illegal or upon a determination by the court of both of the following:
 - (1) The agent or surrogate has violated, has failed to perform, or is unfit to perform, the duty under an advance health care directive to act consistent with the patient's desires or, where the patient's desires are unknown or

unclear, is acting (by action or inaction) in a manner that is clearly contrary to the patient's best interest.

(2) At the time of the determination by the court, the patient lacks the capacity to execute or to revoke an advance health care directive or disqualify a surrogate.

(e) Compelling a third person to honor individual health care instructions or the authority of an agent or surrogate.

A patient is presumed to have the capacity to make a health care decision, to give or revoke an advance health care directive, and to designate or disqualify a surrogate. This presumption is a presumption affecting the burden of proof. Probate Code § 4657.

The Court finds that Patient had the capacity to execute the DNR Directive, which is valid and remains in full force and effect. Absent objection, the Petition is granted as requested.

MOTION TO FILE MEDICAL RECORDS UNDER SEAL

Petitioner moves for an order authorizing the filing under seal of the Declaration of Christopher Smith, M.D., and its attached exhibit consisting of hospital patient progress notes. Petitioner argues that the request is narrow, as it seeks sealing only the confidential medical information, not the entire petition. Further, Patient's medical privacy is an overriding interest, public filing would prejudice that interest, the requested sealing is limited to the records requiring protection, and no lesser measure would adequately protect the information.

California Rules of Court, Rule 2.550 provides that the court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

Privacy is an inalienable right under the California Constitution. (Cal. Const., art. I, § 1; *Lewis, supra*, 3 Cal.5th at p. 569, 220 Cal.Rptr.3d 319, 397 P.3d 1011.) It is well established that the right to privacy extends to medical records (*Cross v. Superior Court* (2017) 11 Cal.App.5th 305, 325–326, 217 Cal.Rptr.3d 569 (*Cross*)), which may contain “matters of great sensitivity going to the core of the concerns for the privacy of information about an individual.” (*Wood v.*

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Superior Court (1985) 166 Cal.App.3d 1138, 1147, 212 Cal.Rptr. 811 (*Wood*).) *Grafilo v. Soorani* (2019) 41 Cal.App.5th 497, 507 [254 Cal.Rptr.3d 149, 157].

The Court finds that the Declaration of Christopher Smith, M.D., and its attached exhibit, contain details concerning Patient's medical information, including diagnosis, prognosis, and treatment information. Such information is inherently private. An overriding interest in Patient's medical records exists that overcomes the right of public access, as such information is not necessary to persons beyond those subject to the underlying Petition, which supports sealing the record.

The Court further finds that a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, as the records would expose Patient's private medical information to persons with no role or interest in the underlying Petition. The request is narrowly tailored, as it only seeks to protect Patient's medical information and no less restrictive means exist, as redaction would essentially cover the entire document.

Petitioner's request to file the Declaration of Christopher Smith, M.D. and its attached exhibit under seal is granted.

TENTATIVE RULING #3:

ABSENT OBJECTION THE PETITION FOR ORDERS AND TEMPORARY ORDER AUTHORIZING COMPLIANCE WITH INMATE'S "DO NOT RESUSCITATE" DIRECTIVE PURSUANT TO PROBATE CODE SECTIONS 4766 AND 4770 IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

PETITIONER'S MOTION TO FILE MEDICAL RECORDS UNDER SEAL IS GRANTED AS REQUESTED.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.